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It is not always bad to disobey a command, for when a lord commands what is contrary to God, then he is not to be obeyed.

Gratian
Decretum, XI 3

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might have come into possession of the land through illegitimate means, or their title might be otherwise defective. Gratian addressed this issue. He carried over a precedent from Roman civil law that if the acquisition had been in good faith—even if technically not legal—then the new owner’s right to the property could not be challenged by the previous owner (in this case, the Church) after a period of 40 years. This represented a 10-year extension to the period a civil landowner had to claim his rights from a new owner.

Gratian’s *Decretum* also helped establish the principle of double jeopardy, in which a person cannot be tried twice for the same crime. He took as his starting point a passage from the Book of Nahum in the Old Testament that “God does not judge twice in the same matters.” Despite this, in certain cases, the ecclesiastical courts still permitted both a civil case to be taken to deprive a cleric of their position and a separate criminal case on the same matter.

Gratian’s sections on marriage helped solidify the notion that consent for marriage should be

freely given and that no one should be coerced into marriage. Even so, on the question of whether a man, having taken monastic vows, is subsequently permitted to change his mind and marry, Gratian finds the matter so difficult that he cites no fewer than 40 previous authorities and eventually concludes that a simple vow of chastity cannot be broken.

The body of canon law

Gratian’s *Decretum* inaugurated an era of ecclesiastical law, known as the *jus novum* (“new law”), in which canon law became regularized and the subject of intense academic study. As early as the 1140s, glossators—writers who provide glossaries or commentaries on other authors’ works—had begun to provide supplements to the *Decretum*, work that would still be ongoing in the 16th century.

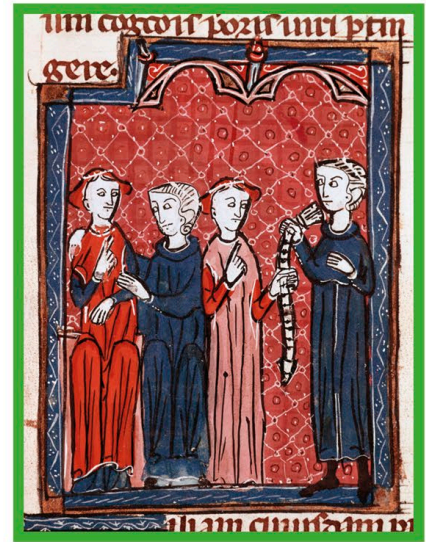
The *Decretum* was one of six works—including the *Liber extra* of the Spanish canon Raymond of Peñafort (approved by Pope Gregory IX in 1234), the *Liber sextus* (1298) of Pope Boniface VIII, and the *Clementines* (1317) of Pope

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No prescription,
whether civil or canonical,
shall be valid without
good faith.

**Decree of the Second
Lateran Council, 1139**

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Canon law dominated in areas to do with family life, marriage, and sexual morality. In this illustration from Gratian’s *Decretum*, a woman has been condemned to wear a chastity belt.

Clement V—that together formed the *Corpus juris canonici* (*Body of Canon Law*). This was the main source of canon law until the Roman Catholic Church’s 16th-century Council of Trent, which clarified Catholic doctrine in the face of Protestant criticism. Even after this time, the *Corpus juris canonici* remained an important influence in the law of the Christian Church until 1917, when a revised code of canon law was promulgated by Pope Benedict XV. In 1959, Pope John XXIII established a papal commission to undertake a new revision, and this took effect in 1983, comprising 1,752 canons (rules or principles) divided into seven books.

Although it had never been formally recognized by the Church, Gratian’s *Decretum* has been an essential legal text in universities for more than 750 years, making it one of the most influential legal works of all time. ■